Hustle Hive CIC – Personal Data Breach Policy and Reporting Form

Item	Detail
Organisation	Hustle Hive CIC, company no. 16691281
Report breaches to	Kieron Davis, Director and data protection lead (07395 828429, kieron@hustlehive.co.uk)
If Kieron is unavailable or involved	Gavin Copland, Director and DSL (07593 975681, gavin@hustlehive.co.uk)
Version	2.0
Effective from	October 2026
Next review	September 2027, or sooner after a significant breach or a change in the law

> **If personal information goes somewhere it shouldn't: stop it, protect it, report it straight away. If a child could be at risk, tell the DSL immediately. Never hide a breach because you think it is minor.**

1. Purpose

This policy explains what everyone must do if personal information is lost, shared with the wrong person, accessed without permission or otherwise compromised. Acting quickly limits the harm, and the law requires us to report serious breaches to the Information Commissioner's Office (ICO) within 72 hours.

2. What is a personal data breach?

A personal data breach is any security incident that leads to personal information being accidentally or unlawfully lost, destroyed, changed, disclosed or accessed. It can involve paper or electronic information, and is usually caused by simple human error, not hacking. Examples include:

- emailing a learner's report, EHCP or medical information to the wrong person, school or parent;
- sending a group email to parents without using BCC;
- losing a register, file, laptop or phone containing learner information;
- sharing a document through a link anyone can open;
- someone getting hold of a staff password, or a phishing or ransomware attack;
- leaving safeguarding information on a desk or screen where others can see it;
- posting a photo of a learner without consent;
- entering learner information into an unapproved AI tool;
- putting confidential paperwork in the general bin; and
- accidentally deleting important records.

Breaches involving children's information, especially safeguarding, SEND, health or family information, can cause serious harm and are always treated seriously.

3. What to do straight away

1. **Stop it.** If it is safe, stop the breach continuing: stop sending, remove a shared link, recall an email, collect the paperwork or disconnect a compromised device.
2. **Protect it.** Change a compromised password, secure the device, and ask anyone who received information by mistake to delete it and confirm they have done so. Keep any evidence, such as the email that was sent.
3. **Report it.** Tell Kieron Davis straight away, by phone if possible, not at the end of the day. If he is unavailable or involved, tell Gavin Copland.
4. **Child at risk?** If the breach could put a child at risk, for example by revealing a child's address or safeguarding information, tell the DSL immediately.

Tell us as much as you know: what happened, when, what information was involved, whose information it was, who may have seen it and what you have already done. Don't wait until you have all the details.

What not to do

- Don't hide the breach, delete evidence or try to fix it quietly.

- Don't contact the ICO yourself.
- Don't discuss it with anyone who doesn't need to know.
- Don't assume a small mistake doesn't need reporting. If in doubt, report it.

No one will be disciplined for honestly reporting a mistake. Hiding a breach is far more serious than making one.

4. Assessing the breach

Kieron Davis, with Gavin Copland where safeguarding or sensitive information is involved, contains the breach and assesses the risk the same day. They consider:

- **What information:** how sensitive it is, for example safeguarding, health, SEND, addresses, photos, financial or login details.
- **Whose information:** how many people, whether children or vulnerable people are involved, and whether they can be identified.
- **Possible harm:** for example risk to safety, distress, bullying, exploitation, discrimination, identity theft or financial loss.
- **How likely harm is:** who received it, whether it has been recovered or deleted, whether it was encrypted, and whether it could be shared further.

Safeguarding

A data breach can also be a safeguarding incident, for example if it reveals where a child lives to someone who poses a risk, or exposes information about domestic abuse or a looked-after child. The DSL takes safeguarding action straight away, under our Safeguarding and Child Protection Policy, without waiting for the data protection investigation to finish.

5. Who we tell

Who	When	How
The commissioning school or local authority	When their learner's information is involved, promptly and in line with any data sharing agreement	Phone the school's DSL or data protection lead, then confirm in writing

Who	When	How
The Information Commissioner's Office	When the breach is likely to result in a risk to people's rights and freedoms, without undue delay and within 72 hours of us becoming aware of it	Online at ico.org.uk or by phone on 0303 123 1113. If we report after 72 hours, we explain why
The people affected	When the breach is likely to result in a high risk to them, without undue delay	In clear language: what happened, what information was involved, what we have done and what they should do. For children, we talk to parents or carers and take account of the child's age and needs
The police, Action Fraud, our insurer or IT provider	Where there is theft, fraud, cybercrime or harassment, or our insurance requires it	As appropriate

Kieron Davis decides whether to notify the ICO and affected people, after consulting another Director, and records the decision and reasons, including when we decide not to notify.

6. Recording every breach

Every breach is recorded on the reporting form below and added to our breach log, including breaches we do not report to the ICO. Completed forms are kept securely by Kieron Davis, separately from learner files, and retained in line with our Records Retention Policy.

7. Learning lessons

After each breach, we look at why it happened and what would stop it happening again, for example training, a change to how we send emails, multi-factor authentication or tighter access permissions. The aim is to improve our systems, not to blame individuals. The Directors review the breach log every year to spot patterns.

Deliberate, reckless or repeated breaches by staff may lead to disciplinary action. Deliberately misusing personal information can be a criminal offence.

8. Training and review

All staff learn how to recognise and report a breach during induction and in annual data protection training. This policy is reviewed every year, and sooner after a significant breach.

Related policies

Read this policy alongside our Data Protection, Information Sharing and Confidentiality, Parent and Learner Privacy Notice, Records Retention, Safeguarding and Child Protection, and Online Safety and Media policies, and our staff code of conduct.

Approval and signatures

This policy has been approved by the Board of Directors of Hustle Hive CIC.

Name	Position	Signature	Date
Gavin Copland	Director and DSL		
Kieron Davis	Director and data protection lead		
Carey Viala	Director		
Sarah Smith	Director		

Appendix: Personal data breach reporting form

Confidential. Store securely and separately from learner files.

Part 1: Report (completed by the person reporting)

Breach reference	
Your name and role	
Date and time of report	
Date and time breach happened (if known)	
Date and time breach discovered	
What happened?	
How was it discovered?	

Is it still happening? (Yes / No / Unknown)	
What information was involved? (for example names, addresses, photos, SEND, medical, safeguarding, financial, passwords)	
Whose information? (learners / parents / staff / other) and roughly how many people	
Does it involve a child or vulnerable person? (Yes / No)	
Who may have received or seen it?	
What have you already done? (for example recalled email, asked recipient to delete, changed password)	

Part 2: Assessment (completed by Kieron Davis or Gavin Copland)

Could this put a child at risk? (Yes / No / Unsure)	
DSL informed? Date and time	
Safeguarding action taken	
Containment action taken	
Possible harm (for example distress, safety risk, bullying, identity theft, financial loss)	
Overall risk (Low / Medium / High) and reasons	
Commissioning school informed? Who and when	
Report to ICO? (Yes / No) and reasons	
Date and time reported to ICO, and ICO reference	
Affected people informed? (Yes / No), reasons and date	
Other agencies informed? (police, insurer, IT provider)	

Part 3: Review and close

Cause (human error / process / technical / cyber / deliberate / unknown)	
Actions to prevent it happening again	
Person responsible and target date	
Date actions completed	
Lessons learned	
Closed by (name and role)	
Signature and date closed	